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MARGARET OKONKWO-REYES

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SANTA CLARA

MARGARET OKONKWO-REYES, an
individual,

Plaintiff,

vs.

HALVERSON DYNAMICS, INC., a
Delaware corporation; and DOES 1 through
20, inclusive,

Defendants.

Case No. 24CV412887

**PLAINTIFF'S MEMORANDUM OF
POINTS AND AUTHORITIES IN SUPPORT
OF MOTION TO COMPEL FURTHER
RESPONSES TO SPECIAL
INTERROGATORIES, SET ONE**

Date: November 14, 2026

Time: 9:00 a.m.

Dept.: 7 (Hon. Dolores A. Marchetti)

Action filed: March 3, 2025

Trial Date: None set

I. INTRODUCTION

Plaintiff Margaret Okonkwo-Reyes served her Special Interrogatories, Set One, on defendant Halverson Dynamics, Inc. on June 9, 2026. Halverson answered on July 14, 2026 with objections to every one of the twenty-two interrogatories and substantive responses to four. The responses that were given are evasive, and the objections are boilerplate. After two meet-and-confer letters and a telephone conference, Halverson has agreed to supplement nothing.

This motion asks the Court to order further responses to Special Interrogatories Nos. 3 through 9, 12, 14, and 17 through 22 within twenty days, without objection, under Code of Civil Procedure section 2030.300. The interrogatories seek the identity of the engineers who reviewed

1 the wiring harness at issue, the dates of that review, and the documents that record it. Nothing
2 about those questions is privileged, burdensome, or unclear.

3 II. STATEMENT OF FACTS

4 Ms. Okonkwo-Reyes purchased a Halverson Model 340 industrial dehumidifier for her
5 commercial bakery in Los Gatos in February 2024. On the night of September 18, 2024, the unit
6 overheated and started a fire that destroyed the bakery's kitchen and two adjacent storerooms. The
7 fire investigator retained by her insurer traced the ignition point to the unit's main wiring harness.
8 (Declaration of Priya N. Vanterpool ("Vanterpool Decl.") ¶ 3, Ex. A.)

9 Halverson's own recall notice, issued four months earlier to distributors but never to end
10 users, describes the problem in terms that could not be plainer:

11 "Units manufactured between March 2023 and January 2024 may
12 contain a wiring harness whose insulation degrades under sustained
13 operation above 85% relative humidity. Distributors should
quarantine affected inventory pending replacement of the harness
assembly." (Vanterpool Decl., Ex. B at p. 2.)

14 The interrogatories at issue ask who at Halverson evaluated the harness before and after
15 that notice, when they did so, and what they wrote down. Halverson objected that each question is
16 "vague, ambiguous, overbroad, unduly burdensome, and seeks information protected by the
17 attorney-client privilege and the work product doctrine," and then answered only that "responsive
18 documents, if any, will be produced." (Vanterpool Decl., Ex. C.) No privilege log was served.

19 Plaintiff's counsel wrote to Halverson's counsel on July 28 and again on August 19, 2026,
20 identifying each deficient response and proposing narrowed language for the two interrogatories
21 Halverson had called overbroad. (Vanterpool Decl., Exs. D, E.) Counsel conferred by telephone
22 on September 3, 2026. Halverson declined to supplement any response and declined to serve a
23 privilege log. (Id. ¶¶ 8–9.)

24 III. ARGUMENT

25 A. Halverson's Boilerplate Objections Are Not a Response.

26 A party responding to interrogatories must answer each one "as completely and
27 straightforwardly as the information reasonably available to the responding party permits." (Code
28 Civ. Proc., § 2030.220, subd. (a).) An objection must be stated with particularity. (Code Civ.

1 Proc., § 2030.240, subd. (b).) A responding party that objects on the basis of privilege must
2 identify the information withheld with enough detail to let the propounding party evaluate the
3 claim. (Code Civ. Proc., § 2031.240, subd. (c)(1); Williams v. Superior Court (2017) 3 Cal.5th
4 531, 557.)

5 Halverson's responses meet none of these requirements. The same five objections are
6 recited, word for word, to twenty-two different questions, including questions that ask for nothing
7 more than a name and a date. An objection that an interrogatory asking for the name of the
8 engineer who signed a test report is "vague" is not made in good faith. And a privilege objection
9 unaccompanied by any log, and unsupported by any explanation of what communication is
10 claimed to be privileged, is no objection at all.

11 **B. The Interrogatories Seek Information Directly Relevant to Notice and Defect.**

12 Discovery may be had of any matter, not privileged, that is relevant to the subject matter
13 of the action, if the matter is itself admissible or appears reasonably calculated to lead to the
14 discovery of admissible evidence. (Code Civ. Proc., § 2017.010.) Plaintiff's strict liability and
15 negligence claims both turn on what Halverson knew about the harness, and when. The engineers
16 who reviewed the harness, the dates of their review, and the reports they wrote are the core of that
17 inquiry. Halverson has not explained how any of it could be irrelevant.

18 **C. Monetary Sanctions Are Mandatory.**

19 The Court "shall impose a monetary sanction" against a party who unsuccessfully opposes
20 a motion to compel further responses to interrogatories unless it finds that the party acted with
21 substantial justification or that other circumstances make the sanction unjust. (Code Civ. Proc., §
22 2030.300, subd. (d).) Halverson's refusal to supplement a single response, or even to serve a
23 privilege log, after two written requests and a telephone conference, was not substantially
24 justified. Plaintiff requests sanctions of \$3,460, representing 7.5 hours at \$440 per hour plus the
25 \$60 filing fee. (Vanterpool Decl. ¶ 11.)

26 **IV. CONCLUSION**

27 For the reasons stated, Plaintiff respectfully requests that the Court order Halverson
28 Dynamics, Inc. to serve further, complete, verified responses to Special Interrogatories Nos. 3

1 through 9, 12, 14, and 17 through 22, without objection, within twenty days of the Court's order,
2 and that the Court impose monetary sanctions of \$3,460 against Halverson and its counsel, jointly
3 and severally.

4 Dated: October 2, 2026

VANTERPOOL & ASHE LLP

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6 By: _____
7 Priya N. Vanterpool
8 Attorneys for Plaintiff
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